

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v. ORIENT
OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

DECLARATION OF J. LEE HILL

I, J. Lee Hill, declare as follows:

1. I am an associate of the law firm Huth Reynolds LLP (“HR LLP”), which has served as counsel of record for Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”) since this action was filed.

2. I submit this Declaration in support of Complainant’s Motion to File Under Seal Complainant’s Opening Brief, Proposed Findings of Fact and Conclusions of Law, and Appendix to the Opening Brief (the “Motion”) filed contemporaneously herewith.¹

3. On December 12, 2024, Complainant’s counsel sought in good faith to meet and confer with counsel for Respondents regarding Respondents’ confidentiality designations to the OOCL Materials.

4. On December 12, 2024, in order to facilitate the public filing of Complainant’s Subject Filings and particularly in light of Judge Wirth’s Order Denying Respondents’ Motion to Seal the Motion to Strike, dated December 11, 2024, Complainant sent to Respondents via email a chart listing the OOCL Materials (the “OOCL Confidentiality Chart”) asking Respondents (a)

¹ Unless otherwise indicated, all terms herein take on the same meaning as in the Motion.

whether Respondents consent to waive the confidentiality designations to the materials listed in the OOCL Confidentiality Chart and (b), if OOCL maintains such designations, whether OOCL asserts that such designations apply to the entirety of the respective documents or instead only portions thereof and (c) if OOCL maintains such designations to only portions of the documents, which portions.

5. Attached hereto as Exhibit A is a true and correct copy of the OOCL Confidentiality Chart.

6. In response, Respondents stated that it was not feasible for Respondents to determine their answers to the foregoing questions (a-c) before Complainant's filing of the Subject Filings.

7. Instead, Respondents requested that Complainant include in this motion a statement that Complainant conferred with Respondents regarding the instant motion and Respondents request more time from the Presiding Officer in order for Respondents to answer Complainant's questions (a-c) as to the Respondents Materials.

8. Respondents did not otherwise indicate that they oppose the Motion.

9. Complainant believes that the nature and content of each of the materials constituting the BBY Materials is consistent with its respective confidentiality designation under the Protective Order.

10. To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct.

Executed on December 13, 2024.

A handwritten signature in black ink, appearing to read "Lee Hill", written over a horizontal line.

J. Lee Hill

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

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Dated: December 13, 2024

/s/ J. Lee Hill

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., formerly known as Bed Bath & Beyond Inc.*